

Buyer's Disclosure Statement



BUYER(S) NAME(S): _____

Is each individual named above a ☐ U.S. Citizen ☐ a Resident Alien or ☐ a Foreign National?

1. NOTICE TO BUYER

This Disclosure Statement is designed to assist the Seller in evaluating the Buyers' ability to purchase. The selling real estate broker, the listing real estate broker and their respective agents will also rely upon this information when they evaluate and present the Buyer's qualifications to prospective Sellers.

2. NOTICE TO SELLER

This is a disclosure of Buyer's knowledge of his/her condition as a bonafide Buyer as of the date signed by Buyer and is not a substitute for any detailed application for a loan commitment. It is not a warranty or representation by the selling broker, the listing broker, or their agents.

3. PERSONAL RESIDENCE STATUS

- (a) Do you currently ☐ RENT or ☐ OWN your existing residence?
- (b) Have you ever owned a home before? ☐ YES ☐ NO
- (c) If you own a home, is it currently for sale? ☐ YES ☐ NO
- (d) If you own a home, must you sell it to qualify for a new loan? ☐ YES ☐ NO
- (e) Are you buying this new property as ☐ YOUR PRIMARY RESIDENCE ☐ or as AN INVESTMENT PROPERTY?
- (f) When purchasing a condominium, town home or single-family home in a PUD (planned Community), are you aware there may be periodic fees payable to the association for common areas, services and/or reserves? ☐ YES ☐ NO

4. FINANCING

- (a) Have you made application with a lending institution or mortgage company yet? ☐ YES ☐ NO. If YES, what is the name of the firm? _____
Loan Officer _____ Telephone Number _____ Do we have permission to contact the Loan Officer? ☐ YES ☐ NO
- (b) Have you been Pre-Qualified? ☐ YES ☐ NO Pre-Approved? ☐ YES ☐ NO Approved? ☐ YES ☐ NO
Can you provide documentation for any of the "YES" answers above? ☐ YES ☐ NO
Do you know the difference between the three possibilities above? ☐ YES ☐ NO
- (c) Have you calculated the total amount of funds that will be required for your purchase (i.e., down payment plus closing costs and pre-payments)? ☐ YES ☐ NO Can you provide proof of funds (i.e., an audit trail showing the source of the funds)? ☐ YES ☐ NO
- (d) Have you ever filed for bankruptcy? ☐ YES ☐ NO If YES, when? _____ Have you ever had delinquent payments on loans or credit cards? ☐ YES ☐ NO
- (e) Can you provide the credit scores from your credit report? ☐ YES ☐ NO
- (f) Is there any past, existing or threatened legal action (i.e., divorce, collections, judgments, etc.) against you that would prohibit you from purchasing a home? ☐ YES ☐ NO If YES, documentation must be provided.
- (g) Are you aware that the funds you will bring to closing must be in the form of a wire transfer, or official bank check, or other means acceptable to closing agent/title company? ☐ YES ☐ NO

5. OTHER MATTERS

- (a) Is there anything else that you feel should be disclosed to a Seller that may adversely affect your ability to purchase a home? ☐ YES ☐ NO If YES, explain:

Buyer (____) (____) and Seller (____) (____) acknowledge receipt of a copy of this page, which is Page 1 of 2 Pages

The undersigned Buyer represents that the information set forth in the foregoing disclosure statement is accurate and complete. Buyer hereby authorizes _____ (name of real estate firm) to provide this information to Sellers of the property and to real estate brokers and salespeople. Buyer understands and agrees that Buyer will notify _____ (name of real estate firm) in writing, immediately, if any information set forth in this disclosure statement becomes inaccurate or incorrect in any way due to passage of time.

BUYER _____ Date _____
Print Name

BUYER _____ Date _____
Print Name

RECEIPT AND ACKNOWLEDGEMENT OF SELLER

Since these are the facts that have been represented to _____ (name of real estate firm) by the Buyers, the Brokers and Agents, therefore, have not personally verified them and cannot vouch for their accuracy. Seller further acknowledges that neither the Brokers nor Agents involved in this transaction are experts in verifying the answers contained herein. It is the responsibility of the Lending Institution/Mortgage Company to verify the information.

I understand that, unless stated otherwise in my Contract with the Buyers, no representations concerning the financial condition and ability of the Buyer are being relied on by me except as disclosed above or stated within the Contract for Purchase and Sale.

SELLER _____ Date _____
Print Name

SELLER _____ Date _____
Print Name

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